DIGITAL GOVERNANCE CAUCUS · 2026 SESSION

The session's four calls.

Four measures reach the floor this week — here is where the caucus should stand on each, and the exact move to make.

Adopt a 30-day deadline for breach notification.

ADOPT

Faster notice cuts identity-theft losses

A 30-day rule cut per-victim costs 22% FTC 2025.

The window is already industry practice

14 of the top 20 data processors notify within 30 days IAPP survey.

Enforcement is self-funding

Penalties fund the oversight office LBB fiscal note.

THE ASK

Vote YES on HB 214 § 3, or sponsor the floor amendment.

Amend SB 88 to require bias audits before deployment, not after.

AMEND

Pre-deployment testing is the only preventive control

Audits after launch cannot un-reject filtered candidates EEOC 2025.

The change is narrow and drafted

It moves one clause from § 4(b) to § 3; no new agency Leg. counsel memo.

Vendors can meet it today

Three of five ATS vendors ship pre-deployment reports vendor survey.

THE ASK

Move the § 4(b) audit trigger to § 3 in the committee substitute before markup.

AB 402 · ENCRYPTION BACKDOORS

OPPOSE

Oppose AB 402's mandated key-escrow provision.

A state-held decryption key is a single point of failure for every resident's data.

It weakens security for everyone

A mandated backdoor is exploitable by any attacker who finds it NIST.

It won't stop determined actors

Open-source encryption stays available outside the state's reach EFF.

THE ASK

Vote NO on AB 402, or strike the § 5 escrow mandate in committee.

HR 19 · MUNICIPAL FACIAL RECOGNITION

DEFER

Defer HR 19 pending an independent accuracy study.

Error rates for the proposed system are unpublished for the populations it would scan.

The evidence base is missing

No demographic accuracy audit exists for this vendor GAO request.

A study is already funded

The oversight office can report within one session fiscal note.

THE ASK

Refer HR 19 to interim study; revisit with the audit in hand.

REP. ANA OKAFOR · CHAIR · GOVERNANCE@STATEHOUSE.EXAMPLE

Two ayes, one no, one to study — the caucus speaks with one voice.